

AFFIDAVIT OF SERVICE

State of Florida County of MANATEE
Colonial Manatee MHC Holdings, LLC
d/b/a Colonial Manatee Mobile Home Park
Plaintiff / Petitioner,

Twelfth Judicial Circuit

vs. PATRICIA A. EVERINGHAM, LISA EVERINGHAM Case No. 2024-CC-3012
AND AN UNKNOWN PARTY(ies) in possession
Defendant/Respondent

For: William C. Price III, Esquire
522 12th St NW
Gadsden, AL 36105

Received by George Hooper on 8-30-24 at 11:10 AM P.M.
Eviction Summons/Residential, Complaint,
Civil Cover Sheet

to be served on:

PATRICIA EVERINGHAM: 900 9th Ave E. Lot #142 Palmetto, FL 34221

Subpoena was served on: PATRICIA EVERINGHAM, in accordance with Florida State
Statute 48.031 (u).

I, George Hooper, being duly sworn, depose and say that on 8-30-24 at 11:45 (am) (pm) I:

Individually served by delivering a true copy of the ORIGINAL

Eviction Summons/Residential, Complaint, Civil Cover
Sheet.

with the date and hour of service endorsed there on by me, to:

PATRICIA EVERINGHAM, at his/her usual place of Abode,

accepted by PATRICIA EVERINGHAM, and informed said person of the contents therein,
in compliance with state statutes.

Description of Person left with:
Age: 53 Gender: M Race: White Height: 5'8" Weight: 150 Hair: Grey Glasses: Y

I ACKNOWLEDGE that I have no interest in the above action, and have legal and proper authority in the jurisdiction
in which this service was made. Under penalty of perjury, I declare that I have read the foregoing and that the facts
stated therein are true.

Signed on 9-3-24

George Hooper
George Hooper CPS 1013

EXHIBIT

"A"

Rec 11:10 AM

8/30/24

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

EVICTIION SUMMONS/RESIDENTIAL

CASE NUMBER: 2024-CC- 3012

8-30-24
11:45 AM

WF 80 5' 5"
150

Chapman
R. H. H. H.
D. L. H. H.

PLAINTIFF/PETITIONER	vs. DEFENDANTS/RESPONDENTS
COLONIAL MANOR MHC HOLDINGS, LLC d/b/a COLONIAL MANOR MOBILE HOME PARK	PATRICIA A. EVERINGHAM, LISA EVERINGHAM and ANY UNKNOWN PARTY(s) IN POSSESSION

TO: PATRICIA EVERINGHAM
900 9th Avenue East; Lot #142
Palmetto, Florida 34221

PLEASE READ CAREFULLY

You are being sued by COLONIAL MANOR MHC HOLDINGS, LLC d/b/a COLONIAL MANOR MOBILE HOME PARK to require you to move out of the place where you are living for the reasons given in the attached Complaint Seeking Eviction, Damages and Other Relief.

You are entitled to a trial to determine whether you can be required to move, but you MUST do ALL of the things listed below. You must do them within (5) days (not including Saturday, Sunday, or any legal holiday) after the date these papers were given to you or to a person who lives with you or were posted at your home.

THE THINGS YOU MUST DO ARE AS FOLLOWS:

- (1) Write down the reason(s) why you think you should not be forced to move. The written reason(s) must be given to the clerk of the Court at the Manatee County Courthouse, Post Office Box 25400, Bradenton, Florida, 34206.
- (2) Mail or give a copy of your written reason(s) to:

William C. Price, III, Esquire
WILLIAM C. PRICE, III, P.A.
522 Twelfth Street West
Bradenton, Florida 34205
Telephone: (941) 747-8001
Attorney for the Plaintiff

"2024CC003012AX" 205777470 Filed at Manatee County Clerk 08/28/2024 03:14:13 PM EDT

"2024CC003012AX" 206229636 Filed at Manatee County Clerk 09/09/2024 11:09:37 AM EDT

"2024CC003012AX" 207183484 Filed at Manatee County Clerk 09/18/2024 03:17:28 PM EDT

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

EVICTIION SUMMONS/RESIDENTIAL

CASE NUMBER: 2024-CC-3012

PLAINTIFF/PETITIONER	vs. DEFENDANTS/RESPONDENTS
COLONIAL MANOR MHC HOLDINGS, LLC d/b/a COLONIAL MANOR MOBILE HOME PARK	PATRICIA A. EVERINGHAM, LISA EVERINGHAM and ANY UNKNOWN PARTY(s) IN POSSESSION

- (3) Pay to the clerk of court the amount of rent that the attached complaint claims to be due and any rent that becomes due until the lawsuit is over. If you believe that the amount claimed in the complaint is incorrect, you should file with the clerk of the court a motion to have the court determine the amount to be paid. If you file a motion, you must attached to the motion any documents supporting your position and mail or give a copy of the motion to the Plaintiff/Plaintiff's Attorney.
- (4) If you file a motion to have the court determine the amount of rent to be paid to the clerk of the court, you must immediately contact the office of the judge to whom the case is assigned to schedule a hearing to decide what amount should be paid to the clerk of the court while the lawsuit is pending.

IF YOU DO NOT DO ALL OF THE THINGS SPECIFIED ABOVE WITHIN FIVE (5) WORKING DAYS AFTER THE DATE THAT THESE PAPERS WERE GIVEN TO YOU OR TO A PERSON WHO LIVES WITH YOU OR WERE POSTED AT YOUR HOME, YOU MAY BE EVICTED WITHOUT A HEARING OR FURTHER NOTICE.

- (5) If the attached Complaint also contains a claim for money damages (such as unpaid rent), you must respond to that claim separately. You must write down the reasons why you believe that you do not owe the money claimed. The written reasons must be given to the clerk of the court at the address specified in paragraph (1) above, and you must mail or give a copy of your written reasons to the Plaintiff/Plaintiff's Attorney at the address specified in paragraph (2) above. This must be done within 20 days after the date these papers were given to you or to a person who lives with you or were posted at your home. This obligation is separate from the requirement of answering the claim for eviction within 5 working days after these papers were given to you or to a person who lives with you or were posted at your home.

In and for Manatee County:

If you cannot afford an attorney, contact Gulfoast Legal Services at (941) 746-6151 or www.gulfoastlegal.org, or Legal Aid of Manasota at (941) 747-1628 or www.legalaidofmanasota.org. If you do not qualify for free legal assistance or do not know an attorney, you may email an attorney referral service (listed in the phone book) or contact the Florida Bar Lawyer Referral Service at (800) 342-8011.

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IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

EVICTIION SUMMONS/RESIDENTIAL

CASE NUMBER: 2024-CC-3012

PLAINTIFF/PETITIONER	vs. DEFENDANTS/RESPONDENTS
COLONIAL MANOR MHC HOLDINGS, LLC d/b/a COLONIAL MANOR MOBILE HOME PARK	PATRICIA A. EVERINGHAM, LISA EVERINGHAM and ANY UNKNOWN PARTY(s) IN POSSESSION

THE STATE OF FLORIDA:

To Each Sheriff of the State: You are commanded to serve this summons and a copy of the complaint in this lawsuit on the above named defendant.

DATED on AUGUST 29, 2024.

ANGELINA "ANGEL" COLONNESO
Manatee County Clerk of Courts and Comptroller

By:



DeMunton
Deputy Clerk

NOTICE: If you are a person with a disability who needs any accommodation in order to participate in this proceeding, you are entitled, at no cost to you, to the provision of certain assistance. Please contact the Manatee County Jury Office, Post Office Box 25400, Bradenton, Florida, 34206, (941) 741-4062, at least seven (7) days before your scheduled court appearance, or immediately upon receiving this notification if the time before the scheduled appearance is less than seven (7) days; if you are hearing or voice impaired, call 711.

Si usted es una persona con una incapacidad que necesita cualquier acomodacion en orden de participar en el procedimiento, Usted esta intitulado, a no costo suyo, la provision de cierta ayuda. Favor de contactar al Manatee County Jury Office, Post Office Box 25400, Bradenton, Florida, 34206 ((41) 741-4062, dentro de siete dias laborables antes de su audiencia tribunal or imediante mente al recibir esta notificacion si su audiencia tribunal es menos de siete dias; si usted tiene una incapacidad de oir o hablar llame al 711.

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AFFIDAVIT OF SERVICE

State of Florida

County of MANATEE

Twelfth Judicial Circuit

Colonial Manor MHC Holdings LLC
4444 Colonial Manor Mobile Home Park
Plaintiff / Petitioner,

vs. Patricia A. Everingham, Lisa Everingham,
and Any Unknown Party(s) in Possession
Defendant/Respondent

Case No. 2024-CC-3012

For: William C. Price III, Esq.
522 West W.

Brandon, FL 34205

Received by George Hooper on 8.30.24 at 11:10 (A.M./P.M.)
Eviction Summons/Residential, Complaint, Civil
Cover Sheet.

to be served on:

Lisa Everingham: 900 9th Av. E. Lot #142, Palmetto, FL 34221.

Subpoena was served on: Lisa Everingham, in accordance with Florida State
Statute 48.031(1)(b).

I, George Hooper, being duly sworn, depose and say that on 8.30.24 at 11:45 (am/pm):

Individually served by delivering a true copy of the ORIGINAL

Eviction Summons/Residential, Complaint, Civil
Cover Sheet

with the date and hour of service endorsed there on by me, to:

Lisa Everingham, at his/her usual place of Abode,

accepted by Patricia Everingham (Mother) and informed said person of the contents therein,
in compliance with state statutes.

Description of Person left with:

Age: 83 Gender: M(F) Race: white Height: 5'8" Weight: 150 Hair: grey Glasses: Y/N

I ACKNOWLEDGE that I have no interest in the above action, and have legal and proper authority in the jurisdiction
in which this service was made. Under penalty of perjury, I declare that I have read the foregoing and that the facts
stated therein are true.

Signed on 9.3.24

George Hooper
George Hooper CPS 1013

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

EVICTIION SUMMONS/RESIDENTIAL

CASE NUMBER: 2024-CC-3012

PLAINTIFF/PETITIONER	vs. DEFENDANT(S)/RESPONDENT(S)
COLONIAL MANOR MHC HOLDINGS, LLC d/b/a COLONIAL MANOR MOBILE HOME PARK	PATRICIA A. EVERINGHAM, LISA EVERINGHAM and ANY UNKNOWN PARTY(S) IN POSSESSION

TO: LISA EVERINGHAM
900 9th Avenue East, Lot #142
Palmetto, Florida 34221

PLEASE READ CAREFULLY

You are being sued by COLONIAL MANOR MHC HOLDINGS, LLC d/b/a COLONIAL MANOR MOBILE HOME PARK to require you to move out of the place where you are living for the reasons given in the attached Complaint Seeking Eviction, Damages and Other Relief.

You are entitled to a trial to determine whether you can be required to move, but you **MUST** do ALL of the things listed below. You must do them within (5) days (not including Saturday, Sunday, or any legal holiday) after the date these papers were given to you or to a person who lives with you or were posted at your home.

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William C. Price, III, Esquire
WILLIAM C. PRICE, III, P.A.
522 Twelfth Street West
Bradenton, Florida 34205
Telephone: (941) 747-8001
Attorney for the Plaintiff

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IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

EVICTIION SUMMONS/RESIDENTIAL

CASE NUMBER: 2024-CC-3012

PLAINTIFF/PETITIONER	vs. DEFENDANTS/RESPONDENTS
COLONIAL MANOR MHC HOLDINGS, LLC d/b/a COLONIAL MANOR MOBILE HOME PARK	PATRICIA A. EVERINGHAM, LISA EVERINGHAM and ANY UNKNOWN PARTY(s) IN POSSESSION

- (3) Pay to the clerk of court the amount of rent that the attached complaint claims to be due and any rent that becomes due until the lawsuit is over. If you believe that the amount claimed in the complaint is incorrect, you should file with the clerk of the court a motion to have the court determine the amount to be paid. If you file a motion, you must attached to the motion any documents supporting your position and mail or give a copy of the motion to the Plaintiff/Plaintiff's Attorney.
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IF YOU DO NOT DO ALL OF THE THINGS SPECIFIED ABOVE WITHIN FIVE (5) WORKING DAYS AFTER THE DATE THAT THESE PAPERS WERE GIVEN TO YOU OR TO A PERSON WHO LIVES WITH YOU OR WERE POSTED AT YOUR HOME, YOU MAY BE EVICTED WITHOUT A HEARING OR FURTHER NOTICE.

- (5) If the attached Complaint also contains a claim for money damages (such as unpaid rent), you must respond to that claim separately. You must write down the reasons why you believe that you do not owe the money claimed. The written reasons must be given to the clerk of the court at the address specified in paragraph (1) above, and you must mail or give a copy of your written reasons to the Plaintiff/Plaintiff's Attorney at the address specified in paragraph (2) above. This must be done within 20 days after the date these papers were given to you or to a person who lives with you or were posted at your home. This obligation is separate from the requirement of answering the claim for eviction within 5 working days after these papers were given to you or to a person who lives with you or were posted at your home.

In and for Manatee County:

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IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

EVICTIION SUMMONS/RESIDENTIAL

CASE NUMBER: 2024-CC-3012

PLAINTIFF/PETITIONER	VS. DEFENDANTS/RESPONDENTS
COLONIAL MANOR MHC HOLDINGS, LLC d/b/a COLONIAL MANOR MOBILE HOME PARK	PATRICIA A. EVERINGHAM, LISA EVERINGHAM and ANY UNKNOWN PARTY(s) IN POSSESSION

THE STATE OF FLORIDA:

To Each Sheriff of the State: You are commanded to serve this summons and a copy of the complaint in this lawsuit on the above named defendant.

DATED on AUGUST 29, 2024.

ANGELINA "ANGEL" COLONNESO
Manatee County Clerk of Courts and Comptroller

By: 

Deputy Clerk

NOTICE: If you are a person with a disability who needs any accommodation in order to participate in this proceeding, you are entitled, at no cost to you, to the provision of certain assistance. Please contact the Manatee County Jury Office, Post Office Box 25400, Bradenton, Florida, 34206, (941) 741-4062, at least seven (7) days before your scheduled court appearance, or immediately upon receiving this notification if the time before the scheduled appearance is less than seven (7) days; if you are hearing or voice impaired, call 711.

Si usted es una persona con una incapacidad que necesita cualquier acomodacion en orden de participar en el procedimiento, Usted esta intitulado, a no costo suyo, la provision de cierta ayuda. Favor de contactar al Manatee County Jury Office, Post Office Box 25400, Bradenton, Florida, 34206 ((41) 741-4062, dentro de siete dias laborables antes de su audiencia tribunal or imediante mente al recibir esta notificacion si su audiencia tribunal es menos de siete dias: si usted tiene una incapacidad de oir o hablar llame al 711.

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AFFIDAVIT OF SERVICE

State of Florida County of MANATEE
Colonial Manor Mkt Holdings LLC
d/b/a Colonial Manor Mobile Home Park
Plaintiff / Petitioner,

Twelfth Judicial Circuit

vs. Alicia A. Livingston, Lisa Livingston
and Any Unknown Party(s) in Possession
Defendant/Respondent

Case No. 2024-CC-3012

For: William C. Price, III, Esq.
572 12th St. W.

Bradenton, FL 34205

Received by George Hooper on 8-30-24 at 11:10 (AM/PM).

Eviction Summons / Residential, Complaint,
Civil Cover Sheet

to be served on:

Any Unknown Party(s) in Possession: 900 9th Ave E Lot #142 Palmetto
FL 34221

Subpoena was served on: Any Unknown Party(s) in Possession in accordance with Florida State
Statute 48.051(3X).
154

I, George Hooper, being duly sworn, depose and say that on 9-3-24 at 7:15 am/pm:

Individually served by delivering a true copy of the ORIGINAL

Eviction Summons / Residential, Complaint,
Civil Cover Sheet

with the date and hour of service endorsed there on by me, to:

Any Unknown Party(s) in Possession at his / her usual place of _____

accepted by Posted on Door After and informed said person of the contents therein,
in compliance with state statutes. Multiple attempts before and after working hours
and on week end.

Description of Person left with:

Age: _____ Gender: M F Race: _____ Height: _____ Weight: _____ Hair: _____ Glasses: Y N

I ACKNOWLEDGE that I have no interest in the above action, and have legal and proper authority in the jurisdiction
in which this service was made. Under penalty of perjury, I declare that I have read the foregoing and that the facts
stated therein are true.

Signed on 9-3-24

George Hooper
George Hooper CP8 1013

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

EVICTIION SUMMONS/RESIDENTIAL

CASE NUMBER: 2024-CC-3012

PLAINTIFF/PETITIONER	vs. DEFENDANTS/RESPONDENTS
COLONIAL MANOR MHC HOLDINGS, LLC d/b/a COLONIAL MANOR MOBILE HOME PARK	PATRICIA A. EVERINGHAM, LISA EVERINGHAM and ANY UNKNOWN PARTY(s) IN POSSESSION

TO: ANY UNKNOWN PARTY(s) IN POSSESSION
900 9th Avenue East, Lot #142
Palmetto, Florida 34221

PLEASE READ CAREFULLY

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522 Twelfth Street West
Bradenton, Florida 34205
Telephone: (941) 747-8001
Attorney for the Plaintiff

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IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
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EVICTIION SUMMONS/RESIDENTIAL

CASE NUMBER: 2024-CC-3012

PLAINTIFF/PETITIONER	vs. DEFENDANTS/RESPONDENTS
COLONIAL MANOR MHC HOLDINGS, LLC d/b/a COLONIAL MANOR MOBILE HOME PARK	PATRICIA A. EVERINGHAM, LISA EVERINGHAM and ANY UNKNOWN PARTY(s) IN POSSESSION

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IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

EVICTIION SUMMONS/RESIDENTIAL

CASE NUMBER: 2024-CC- 3012

PLAINTIFF/PETITIONER	vs. DEFENDANTS/RESPONDENTS
COLONIAL MANOR MIC HOLDINGS, LLC d/b/a COLONIAL MANOR MOBILE HOME PARK	PATRICIA A. EVERINGHAM, LISA EVERINGHAM and ANY UNKNOWN PARTY(S) IN POSSESSION

THE STATE OF FLORIDA:

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DATED on AUGUST 29, 2024.

ANGELINA "ANGEL" COLONNESO
Manatee County Clerk of Courts and Comptroller

By:  Reimston
Deputy Clerk

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IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

COLONIAL MANOR MHC HOLDINGS, LLC,
d/b/a COLONIAL MOBILE MANOR,
Plaintiff,

vs.

Case No. 2024-CC-003012

PATRICIA A. EVERINGHAM, LISA
EVERINGHAM and ANY
UNKNOWN PARTY(s) IN POSSESSION,
Defendants.

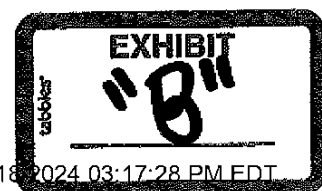
JUDGMENT FOR POSSESSION

THIS CAUSE having come on for review on Plaintiff's Motion for Judgment of Possession and the Court having reviewed the pleadings in this matter and being otherwise fully advised in the premises, it is therefore:

ORDERED and ADJUDGED:

That the tenancy of Defendants, PATRICIA A. EVERINGHAM, LISA EVERINGHAM and ANY UNKNOWN PARTY(s) IN POSSESSION, who occupy the home located at 900 9th Ave East Lot #142, Palmetto, Manatee County, Florida 34221, in Colonial Mobile Manor (the "Property"), is hereby terminated, and the Clerk of Court **shall issue a Writ of Possession ten (10) days from the date hereof** directing the Sheriff of Manatee County, Florida to assist the Plaintiff in removing the Defendants from the premises located above and putting the Plaintiff in possession after first conspicuously posting the Writ of Possession for twenty-four (24) hours, together with any personal property, from the Property; Defendants shall be forever removed and barred from entry onto the Property forevermore.

Plaintiff shall be entitled upon execution of the writ of possession to the removal of the Defendants by the Manatee County Sheriff from the subject home and from all of Lot 142 in the park, and the Plaintiff shall also upon execution of the writ of possession be entitled to change the locks on



the home pursuant to its right to store the home as provided by §723.062(2), Florida Statutes.

By changing the locks, Plaintiff is electing to store the home on the lot as allowed by the statute. Once the locks have been changed, Plaintiff is not required to provide a copy of the new keys to Defendants.

The Court reserves jurisdiction on the other issues of the Plaintiff's Complaint.

DONE AND ORDERED in Chambers at Bradenton, Manatee County, Florida, this

_____ day of _____, 2024.

JACQUELINE BLANTON STEELE
COUNTY JUDGE

cc: William C. Price, III, Esquire, 522 Twelfth Street West, Bradenton, FL 34205
Patricia A. Everingham, 900 9th Ave East, Lot #142, Palmetto, Florida, 34221
Lisa Everingham, 900 9th Ave East, Lot #142, Palmetto, Florida, 34221
Any Unknown Party(s) in Possession, 900 9th Ave East, Lot #142, Palmetto, Florida, 34221